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California becomes first US state to ban cancer-causing food additives: 'Skittles ban' will force 12,000 junk foods to change their recipes or face fines

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Supporters heralded the ban as an 'important stand' for food safety Gavin Newsom signed the bill into law on Saturday forcing recipe alterations READ MORE: Ten hazardous food additives already banned in Europe

Candy companies will be forced to change their recipes within three years in California or face fines after a new bill was passed in the Golden State.

Gavin Newsom signed the so-called 'Skittles ban' Saturday, which outlaws four popular additives that have been linked to cancer, disease and mood disorders.

The bill gives food companies three years to strip the ingredients from their products or face fines of up to $10,000.

Supporters have heralded the bill as an 'important stand' against 'toxic' chemicals but food companies have hit back, blasting the move as confusing and threatening to raise food prices.

The four newly-banned additives are: brominated vegetable oil, potassium bromate, propylparaben and red dye No.3.

Around 12,000 products sold in California use these, according to the Environmental Working Group.

An earlier version of the ban also included titanium dioxide — used in products like Skittles — but this was removed in September. This was how the bill became known as the 'Skittles ban'.

The European Union has already outlawed the additives in foods, forcing companies to make the tweaks.

The ban will come into force in January 2027, with companies found to be manufacturing, distributing or selling the products facing fines of up to $10,000.

Other states like New York look are considering similar bans.

10 hazardous food additives that are banned in Europe but legal in the US

List includes foods linked to cancer and that can harm a person's fertility.

Newsom revealed he had signed the bill into law by stapling a packet of Skittles to the document.

He said: 'This is demonstrable proof that the food industry is capable of maintaining product lines while complying with different public health laws, country-to-country.'

Jesse Gabriel, a Democrat for Woodland Hills who proposed the bill, said: 'The Governor's signature today represents a huge step in our effort to protect children and families in California from dangerous and toxic chemicals in our food supply.

'It is unacceptable that the US is so far behind the rest of the world when it comes to food safety.

'This bill will not ban any foods or products — it simply will require food companies to make minor modifications to

their recipes and switch to safer alternative ingredients.

'These are already in use in Europe and so many other places around the globe.'

Brian Ronholm, the director of food safety at Consumer Reports, said: 'We've known for years that the toxic chemicals banned under California's landmark new law pose a serious risk to our health.

'California has taken an important stand for food safety at a time when the FDA has failed to take action.

'Safer versions of food products that are available in other countries should be made available to US consumers too.'

Democrats in the state said their aim was not to ban the sale of any foods in the state outright, but to get manufacturers to change their recipes.

Studies show that Red No.3 — a food dye in many candies — can cause cancer in laboratory animals in very high doses and has been linked to behavioral issues in children.

The US banned it from cosmetic products in the 1990s, but it remains in many food products still sold in the US.

A pair of studies in 2016 found it was in more than one in 10 candies in the US and more than 80 percent of children under two had consumed it in the past two weeks.

Another of the substances set to be banned — brominated vegetable oil, which is made from plants and used for citrus flavoring — is suggested to harm the body's nervous system following long-term exposure.

It has also been linked to the development of chronic headaches, memory loss and impaired balance. It was previously in the soda Mountain Dew until parent company Pepsi removed the ingredient in 2020.

Propylparaben, often used as a preservative in baking goods, has been linked to fertility issues in mice via disrupting estrogen in females and reducing sperm counts in males.

Potassium bromate is found in many baked goods too, but has been linked to the development of thyroid and kidney cancers. It is often used in processed foods to make the dough rise.

The National Confectioners Association — which represents candy companies — said: 'They're making decisions based on soundbites rather than science.

'We should be relying on the scientific rigor of the FDA in terms of evaluating the safety of food ingredients and additives.'

A spokesman added that the law 'replaces a uniform national food safety system with a patchwork of inconsistent state requirements created by legislative fiat that will increase food costs'.

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